

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. RG GB DLJFZ

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF NANCY J. McMENAMIN, M.A., LPC, LICENSE NO. 1196

IT IS HEREBY STIPULATED and agreed by and between the
Colorado State Board of Licensed Professional Counselor Examiners
("Board") and Nancy J. McMenamin, M.A., LPC ("respondent"), as
follows:

1. The Board has jurisdiction over the person of respondent
and the subject matter set forth in this stipulation and order.

2. The State Board of Licensed Professional Counselor
Examiners granted respondent a license to practice as a licensed
professional counselor in Colorado on April 22, 1995. Respondent
was issued license number 1196.

3. Respondent was practicing psychotherapy in the state of
Colorado as provided in C.R.S. §12-43-201(9). Respondent
practiced psychotherapy in the case involved in this proceeding.

4. On or about December 26, 1996 the Board received a
complaint against respondent alleging practice below generally
accepted standards of practice.

5. Following an investigation of the complaint the Board
determined that reasonable grounds existed to refer this matter
to its legal counsel, the Colorado Attorney General, for
disciplinary action regarding respondent's license to practice
professional counseling and practice of psychotherapy in the
state of Colorado.

6. Respondent understands that she has the right to a
hearing with respect to the complaint filed against her.
Respondent further understands and agrees that, by voluntarily
and knowingly entering into this stipulation and order, she
waives her right to a hearing; relieves the Board of its burden
of proving a violation of the Colorado Mental Health Statute;

gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that she has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

7. Respondent agrees that she freely and voluntarily enters into this agreement including practice monitoring, evaluation and education.

8. Respondent is not currently practicing professional counseling and psychotherapy in Colorado. Respondent is practicing psychotherapy in California as an employee of the Yono County Mental Health Agency. Since respondent is practicing as an employee of the Mental Health Agency for Yono County, California, the Board agrees that respondent's mental health employment supervisor at the Yono County Mental Health Agency may act as her supervisor for purposes of completing the supervision requirements of this stipulation and order as set out in paragraphs 9 and 10. Should respondent become licensed to practice professional counseling in California under requirements similar to the requirements set forth in this stipulation and order (3 years of practice monitoring or supervision with 20 hours of continuing education each year), completion of these requirements for the California licensure shall satisfy the terms of this stipulation and order. Should respondent seek to resume the practice of professional counseling and psychotherapy in Colorado, and has not satisfied the requirements of this stipulation and order through supervision or practice monitoring in California, she shall notify the State Grievance Board and at that time comply with the terms of this stipulation and order.

9. The Board, by this stipulation and order, hereby orders that should respondent seek to resume the practice of professional counseling and psychotherapy in the state of Colorado she shall undergo three years of practice monitoring or supervision of her practice of professional counseling and psychotherapy and shall complete twenty hours of continuing education during each of the three years. Respondent may request the Board to reduce or end the period of practice monitoring or supervision once she has completed one year of practice monitoring or supervision. Respondent may not resume her practice of professional counseling and psychotherapy in Colorado until she has a Board-approved mental health provider to monitor her independent practice of professional counseling and

psychotherapy ("practice monitor") or a mental health employment supervisor ("supervisor") if she is employed in a mental health agency position. The supervisor or practice monitor will evaluate and monitor her practice of professional counseling and psychotherapy. During the period of supervision or practice monitoring respondent can practice professional counseling and psychotherapy only if she complies with the conditions of this stipulation and order and has a practice monitor or supervisor in place.

10. The conditions of respondent's practice monitoring or supervision are:

a. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-704(1) and assure that she does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent's practice of professional counseling and psychotherapy must be evaluated and monitored by her supervisor or practice monitor. The supervisor or practice monitor shall report in writing to the Board in accordance with this order.

c. The first responsibility of the supervisor or practice monitor will be to conduct an evaluation of all aspects of respondent's practice or proposed practice of professional counseling and psychotherapy and her qualifications, current ability, and competence to practice professional counseling and psychotherapy. The evaluation will determine if respondent can practice professional counseling and psychotherapy with skill and safety for her clients, in accordance with generally accepted standards of practice, and whether respondent has the qualifications, current ability, and competence necessary for her practice or proposed practice of professional counseling and psychotherapy. The report on this evaluation shall be submitted as part of the supervisor's or practice monitor's first report.

d. Should the Board determine, based on the report from the supervisor or practice monitor, that respondent can not practice professional counseling and psychotherapy, or some portion of her practice or proposed practice of professional counseling and psychotherapy, in accordance with generally accepted standards of practice and with skill and safety for her clients or does not have the appropriate qualifications, current ability or competence for some portion of her practice or proposed practice of professional counseling and psychotherapy, respondent shall not practice professional counseling and psychotherapy or that portion of the practice which she is not

qualified, competent or safe to conduct. Respondent may not resume the practice of professional counseling or that portion of her practice that she is not qualified, competent or safe to conduct until the Board finds that she is qualified, competent and safe to practice. Based on the Board's findings and the supervisor's or practice monitor's report, the Board will determine necessary actions that respondent must take and conditions she must meet so that she can be considered qualified, competent, and safe to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients in any areas the Board found she was not qualified, competent, and safe to practice. Once respondent has taken the appropriate actions and met the conditions so that she is qualified, competent, and safe to fully practice professional counseling and psychotherapy, she may engage in the full practice of professional counseling and psychotherapy under the terms of this stipulation and order.

e. Should respondent practice professional counseling and psychotherapy in a position where she is directly supervised by mental health professional as an employee of a hospital, mental health agency, health care provider or any employer, her supervisor shall provide the following minimal supervision:

(i) The supervision must involve direct, regular contact between respondent and her supervisor that occurs at such frequency and for such length of time as the supervisor deems necessary, but at least once a week for one hour. Respondent and her supervisor must review and discuss each of respondent's active cases on a regular basis, which the supervisor determines appropriate and necessary for the supervisor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(ii) The supervisor shall observe respondent in her work with clients to the extent the supervisor deems appropriate and necessary to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(iii) The supervisor shall review respondent's case load to assure that respondent is only treating clients that she is capable of treating in accordance with her level of training and experience, and to assure that she is treating

clients according to generally-accepted standards of practice and with skill and safety for her clients.

(iv) The supervisor shall maintain such personnel records as are deemed appropriate by the supervisor or kept in the normal course of employee evaluation. Such personnel records shall be sufficient to reflect whether respondent is appropriately treating clients in accordance with her training and experience and according to generally-accepted standards of practice and with skill and safety for her clients.

(v) The supervisor shall report to the Board, in writing, as to whether the respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients. The first report shall be submitted by the fifth day of the month following the first full month of respondent's employment or the first full month this stipulation and order is in effect. The supervisor shall submit subsequent reports on the fifth day of each month thereafter (i.e., on a monthly basis) for the first twelve reports. After submission of the first twelve reports, unless otherwise ordered by the Board, the supervisor shall submit reports by the fifth day of every third month (i.e., on a quarterly basis) until the probation is completed.

(vi) If the supervisor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice or is not practicing professional counseling and psychotherapy with skill and safety for her clients, s/he shall take appropriate employment action and shall report the opinion and the basis for that opinion as well as any action affecting respondent's employment to the Board. Any such report shall be made in writing within 48 hours of forming her/his opinion. The supervisor shall send a copy of the report to the respondent when s/he sends the report to the Board. Should the Board receive such a report, respondent shall immediately cease the practice of professional counseling and psychotherapy.

f. Should respondent engage in the independent practice of professional counseling and psychotherapy her practice monitor will monitor her practice as follows:

(i) The practice monitor shall monitor all of her cases. The practice monitoring shall consist of individual face-to-face meetings between respondent and her practice monitor that occur for one hour or such longer time as the practice monitor deems necessary for every 20 hours of client contact, but

at least once a month. During monitoring sessions, respondent and her practice monitor must review and discuss each of respondent's active cases at least once a month to allow the practice monitor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients.

(ii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems appropriate and necessary to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(iii) The practice monitor shall report the results of the practice monitoring to the Board in writing and send a copy of each report to the respondent. The practice monitor must submit her/his first report by the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports by the fifth day of each month thereafter (i.e. on a monthly basis) for the first 12 reports. Following submission of the first 12 reports, unless otherwise directed by the Board, the practice monitor shall submit her/his reports by the fifth day of every third month (i.e. on a quarterly basis).

(iv) Respondent must have a practice monitor approved by the Board before resuming the independent practice of professional counseling and psychotherapy in Colorado. Should respondent practice professional counseling and psychotherapy in Colorado without an approved practice monitor in place, her practice of professional counseling and psychotherapy shall constitute a violation of C.R.S. §§12-43-704 and 12-43-704.5 creating an emergency condition. A summary suspension of respondent's professional counseling license and cease and desist order prohibiting respondent from practicing psychotherapy will be issued if respondent engages in the independent practice of professional counseling and psychotherapy in Colorado without an approved practice monitor in place while this stipulation and order is in effect.

(v) After the Board's written approval of the practice monitor, respondent and her practice monitor shall enter into a written contract for practice monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has

received a copy of this stipulation and order, the Board's file, and other pertinent material on this case; has read these materials; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor. The practice monitor shall assure that a written notification informing each psychotherapy client of the name, address, and telephone number of the practice monitor is provided to each client. This written notification may be provided in a mandatory disclosure form.

(vi) If the practice monitor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice or has a physical or mental condition which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care, the practice monitor shall report this opinion and the basis for the opinion to the Board. The practice monitor shall make such report in writing within 48 hours of forming her/his opinion. The practice monitor shall send a copy of such a report to the respondent when s/he sends the report to the Board. Should the Board receive such a report, respondent shall immediately cease the practice of professional counseling and psychotherapy.

(vii) Either respondent or her practice monitor may terminate the monitoring relationship on written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall not engage in the independent practice of professional counseling and psychotherapy without first obtaining another Board-approved practice monitor, who conducts her/his monitoring and reports to the Board in accordance with this stipulation and order.

g. Respondent shall not supervise or consult with any person(s) who is providing psychotherapy to clients unless such supervision and consulting is monitored by respondent's supervisor or practice monitor in accordance with the provisions of paragraph 10e or 10f.

h. Respondent must complete at least 20 hours per year of Board-approved, graduate level, professional continuing education designed to educate mental health professionals in diagnostic skills, marriage and family therapy/couples counseling, and other legal/ethical issues related to the practice of professional counseling and psychotherapy. Completion of an approved jurisprudence workshop is required as part of this educational requirement.

i. Respondent shall take reasonable steps to assure that her supervisor or practice monitor provide required reports to the Board.

j. Respondent, not the Board, is responsible for all costs and/or expenses incurred for supervision, practice monitoring, evaluation or any other action required in fulfilling the requirements of this order.

k. Respondent must provide written notification to every professional counseling and psychotherapy client who she provides professional counseling and psychotherapy services to while this order is in effect, informing the client of the name, address, and telephone number of her supervisor or practice monitor. This notice may be provided in a mandatory disclosure statement.

l. Respondent agrees that she will provide and allow her supervisor or practice monitor to provide medical or psychological information to the Board in the event the supervisor or practice monitor determines that respondent has any condition which renders her unable to treat clients with skill and safety in accordance with generally-accepted standards of practice or which may endanger the health or safety of persons under her care. As part of this stipulation and order respondent explicitly waives her right to maintain confidentiality of medical and psychological records and information provided to her supervisor or practice monitor if the supervisor or practice monitor determines that she has any condition which renders her unable to treat clients with skill and safety in accordance with generally-accepted standards of practice or which may endanger the health or safety of persons under her care.

11. All time periods and obligations provided in this stipulation and order run only while respondent is engaged in the practice of professional counseling and psychotherapy in Colorado under the monitoring of a supervisor or practice monitor, except as provided in paragraph 8 regarding her practice of psychotherapy in California. They are tolled and suspended at all other times.

12. If, after resuming the practice of professional counseling and psychotherapy in Colorado, respondent discontinues the practice of professional counseling and psychotherapy in Colorado, she shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date she ceased practicing and her new address if she has moved.

13. In the event respondent subsequently resumes her practice of professional counseling and psychotherapy in Colorado, she shall notify the Board in writing prior to resuming practice in Colorado. Such notification shall include her address and the date on which she intends to resume practice.

14. As used in this stipulation and order, the terms "practice of professional counseling", "professional counseling practice", "professional counseling services", and "engaged in the practice of professional counseling" shall have the same meaning and scope as "professional counseling" defined in C.R.S. §12-43-601(4). The terms "practice of psychotherapy", "psychotherapy practice", "psychotherapy services", and "engaged in the practice of psychotherapy" shall have the same meaning and scope as the term "psychotherapy" defined in C.R.S. §12-43-201(9).

15. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

16. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

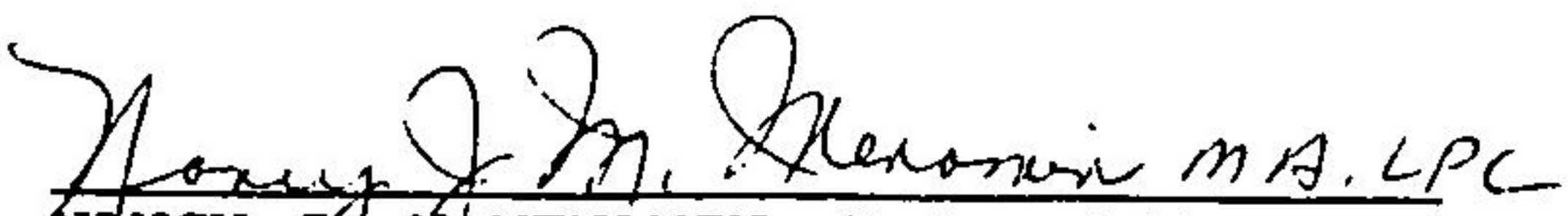
17. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the order; and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

18. This stipulation and order shall take effect on acceptance and signature by the Board.

19. This stipulation and order is a public record.

DATED: _____

8/1/98


NANCY J. MCMENAMIN, M.A., LPC
Respondent

ACCEPTED, SIGNED, AND ORDERED this 4th day of September 1998.

COLORADO STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS

Aue Kury
BOARD CHAIR

APPROVED AS TO FORM

FOR THE ATTORNEY GENERAL:

James F. Carr
JAMES F. CARR, 9343
Assistant Attorney General
Regulatory Law Section

Attorneys for the State Board
of Licensed Professional
Counselor Examiners

1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: 303/866-5283
AG Alpha No. RG GB DLJFZ
AG File No. RLJC7187